

Court No. - 39

Case :- WRIT - C No. - 31176 of 2022

Petitioner :- Lakhan Lal And Another

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Hans Pratap Singh

Counsel for Respondent :- C.S.C.,Gaurav Singh

Hon'ble Mrs. Sunita Agarwal,J.

Hon'ble Vipin Chandra Dixit,J.

Heard Sri Hans Pratap Singh learned counsel for the petitioners, Sri Gaurav Singh learned counsel for the respondents-Electricity Department and perused the record.

The petitioner is raising the dispute with regard to the computation of electricity charges pertaining to the electricity connection taken by them.

The remedy before the petitioners is to approach respondent no. 5 namely the Executive Engineer concerned by filing objection invoking the provisions of paragraph 6.5 of the U.P. Electricity Supply Code, 2005.

For the aforesaid, we **dispose of** the present writ petition with the observation that the petitioners shall file appropriate objection invoking the provisions of paragraph 6.5 of the U.P. Electricity Supply Code, 2005 before the respondent no. 5 namely the Executive Engineer, Dakshinanchal Vidyut Vitran Nigam Ltd. Hamirpur raising all their grievances within a period of two weeks from today along with the copy of this order.

In case, such an objection is filed within the time given above, the Executive Engineer concerned shall be under obligation to take an expeditious decision, in accordance with law, dealing with all points of objections, preferably, within a period of four weeks from the date of receipt of the objection.

For a period of two months or till the decision is taken by the Executive Engineer concerned, whichever is earlier, the impugned recovery certificate dated 5.8.2022 shall be kept in abeyance.

In case of default of filing objection within the time given above, it is open to the respondents to proceed against the petitioners, in accordance with law.

Order Date :- 3.11.2022

Brijesh